

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #09	CCRB Case #: 201701414	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/15/2016 7:14 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/15/2018	Precinct: 42		
Date/Time CV Reported	CV Reported At: Office of City Council member	How CV Reported: Mail	Date/Time Received at CCRB Tue, 02/21/2017 3:27 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joel Riveragonzalez	16579	956208	HBXQ RT
2. POM Adam Gonzalez	2677	954879	HBXQ RT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Emil Alvarez	15027	955712	HBXQ RT
2. POM Preston Uwoghiren	08804	955611	HBXQ RT
3. POM Antonio Desucre	13684	955872	HBXQ RT
4. POM Luis Rodriguez	11804	956213	HBXQ RT
5. POM Bryan Gomez	21571	954877	HBXQ RT
6. POM Michael Holland	14664	955984	HBXQ RT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joel Riveragonzalez	Abuse: Police Officer Joel Rivera-Gonzalez entered § 87(2)(b) in the Bronx.	A . Unsubstantiated
B . POM Joel Riveragonzalez	Abuse: Police Officer Joel Rivera-Gonzalez threatened to arrest § 87(2)(b)	B . Unsubstantiated
C . POM Joel Riveragonzalez	Discourtesy: Police Officer Joel Rivera-Gonzalez spoke discourteously to § 87(2)(b)	C . Substantiated
D . POM Joel Riveragonzalez	Force: Police Officer Joel Rivera-Gonzalez used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Adam Gonzalez	Abuse: Police Officer Adam Gonzalez refused to provide his name and shield number to § 87(2)(b)	E . Unsubstantiated
F . POM Joel Riveragonzalez	Abuse: Police Officer Joel Rivera-Gonzalez issued a summons to § 87(2)(b)	F . Substantiated

Case Summary

On February 15, 2017, § 87(2)(b) filed this complaint on behalf of herself and her parents, § 87(2)(b) and § 87(2)(b) by mailing a letter to District 16 Councilwoman Vanessa Gibson's office. On February 23, 2017, this letter was received by the CCRB. On March 17, 2017, a duplicate complaint was received by the Internal Affairs Bureau via mail, generating IAB log number 2017-9620. On March 20, 2017, IAB forward this duplicate complaint to the CCRB.

On December 15, 2016, at approximately 7:14 p.m., § 87(2)(b) noticed a leak in her apartment at § 87(2)(b) in the Bronx, and she went upstairs to § 87(2)(b) to see if it was coming from their upstairs neighbor's apartment. The neighbor said there was no leak, and § 87(2)(b)'s sister, § 87(2)(b) (who was not present during the incident), called 911 and requested the assistance of FDNY. The neighbor, whom the investigation was unable to identify, also called 911 to report being harassed by § 87(2)(b) § 87(2)(b) exited the building to retrieve her paycheck, and PO Joel Rivera-Gonzalez and PO Adam Gonzalez of Housing Bureau Bronx/Queens Response Team went to § 87(2)(b) to speak to the neighbor.

When § 87(2)(b) returned to the § 87(2)(b), she noticed PO Joel Rivera-Gonzalez allegedly holding her apartment door open with his foot and speaking to her father, § 87(2)(b) (Allegation A). § 87(2)(b) entered her apartment, and PO Rivera-Gonzalez approached her and allegedly told her that he would arrest her if she ever banged on the door to § 87(2)(b) again (Allegation B). § 87(2)(b) denied banging on the door, and PO Rivera-Gonzalez allegedly told her to "shut the fuck up (Allegation C)." § 87(2)(b) asked PO Rivera-Gonzalez why he thought he could speak to her in such a manner in her home, and PO Rivera-Gonzalez allegedly replied, "This is my motherfucking house. Every time we're here, it's our fucking house (Allegation C cont'd)." Over the next five minutes, PO Rivera-Gonzalez allegedly continued to say that it was his "fucking house (Allegation C cont'd)" and that he was going to arrest § 87(2)(b) (Allegation B cont'd). As § 87(2)(b) spoke to her mother, § 87(2)(b) PO Rivera-Gonzalez told § 87(2)(b) to shut up. § 87(2)(b) began to cry and use profanities towards PO Rivera-Gonzalez. PO Rivera-Gonzalez handcuffed § 87(2)(b) and allegedly pushed her onto a couch in the living room, where she landed on her side (Allegation D). § 87(2)(b) asked PO Gonzalez, for his name and shield number, and PO Gonzalez allegedly said he did not have to provide this information (Allegation E). PO Rivera-Gonzalez wrote § 87(2)(b) a summons for § 87(2)(b), and then the officers left the apartment without effecting any arrests (Allegation F).

There is no video footage in this case. § 87(2)(g)

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) during her telephone statement on February 28, 2017, and she requested time to consult with her attorney before deciding whether to proceed with mediation or an investigation. Later that day, Inv. Phillips received a voicemail from § 87(2)(b) who stated that she wished to proceed with an investigation rather than mediation. § 87(2)(b) rejected mediation again during her interview on March 6, 2017 § 87(2)(b)

- As of April 24, 2017, § 87(2)(b) and § 87(2)(b) have not filed a notice of claim in regards to this incident (Board Review 01).
- As of May 5, 2017, § 87(2)(b) has not filed a notice of claim in regards to this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) and § 87(2)(b) are involved (Board Review 03).
- Both PO Joel Rivera-Gonzalez and PO Adam Gonzalez have been members of the NYPD for three years and are not the subjects of any prior CCRB allegations (Board Review 04).

Potential Issues

- § 87(2)(b) and her siblings, § 87(2)(b) and § 87(2)(b) each stated that their father's name is § 87(2)(b). It was not until May 1, 2017 that it was discovered that his full legal name is § 87(2)(b).
- § 87(2)(b) and § 87(2)(b) each missed their scheduled interviews and failed to respond to subsequent contact attempts to reschedule their interviews.
- The undersigned was unable to establish contact with § 87(2)(b)'s mother, § 87(2)(b) who was present in § 87(2)(b) at the time of the incident.

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(b) alleged that PO Rivera-Gonzalez said, "Who the fuck are you?" to § 87(2)(b). However, § 87(2)(b) stated PO Rivera-Gonzalez did not use any profanities towards him. § 87(2)(g)
- § 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Joel Rivera-Gonzalez entered § 87(2)(b) in the Bronx.

§ 87(2)(b) stated that when she arrived on the § 87(2)(b) floor and approached § 87(2)(b) she saw PO Rivera-Gonzalez standing at the entrance to § 87(2)(b) and holding the door open with his left foot while speaking to § 87(2)(b). She was not present when § 87(2)(b) opened the door and did not know what he and PO Rivera-Gonzalez were discussing. § 87(2)(b) entered the apartment, asked why the officers were present, and then PO Rivera-Gonzalez entered the apartment. § 87(2)(b) had no recollection of the officers requesting consent to enter the apartment, and she stated that no one in the apartment volunteered their consent for the officers to enter.

In a telephone statement, § 87(2)(b) alleged that the officers knocked on his door and he opened it, at which point six to seven officers immediately entered the apartment without requesting consent to do so. § 87(2)(b) stated that no one inside the apartment told the officers that they were not permitted to enter, and he noted that no discussion took place at the door prior to the officers' entry.

§ 87(2)(b) went to the bathroom when § 87(2)(b) opened the door for the officers. She stated that the officers were speaking to § 87(2)(b) and § 87(2)(b) but she did not know what they discussed at the door because she was in the bathroom and was not paying attention. When she exited the bathroom, seven to eight officers had already entered the apartment.

§ 87(2)(b) stated that he was in his bedroom when he heard PO Rivera-Gonzalez, who was in the kitchen/living room area, say, "This is my fucking house. I make the rules now. When I walk in here, this becomes my house (see Allegation C)." § 87(2)(b) did not hear anything before this. § 87(2)(b) exited his bedroom and saw approximately six to seven police officers in the apartment near the front door.

PO Rivera-Gonzalez stated that an officer knocked on the door to § 87(2)(b) and § 87(2)(b) opened the door. § 87(2)(b) and § 87(2)(b) explained to PO Rivera-Gonzalez that there was a leak in their bathroom coming from § 87(2)(b) at which point § 87(2)(b) arrived on the § 87(2)(b) floor and began yelling and cursing at the officers and wagging her finger in their faces. PO Rivera-Gonzalez stated that either § 87(2)(b) or § 87(2)(b) asked the officers to enter § 87(2)(b) in order to examine the leak. PO Rivera-Gonzalez and PO Gonzalez then entered the apartment. The officers did not request § 87(2)(b)'s or § 87(2)(b)'s consent to enter. PO Rivera-Gonzalez did not recall himself or any other officer holding the door open with his foot.

PO Gonzalez stated that § 87(2)(b) invited the officers into § 87(2)(b) but he did not recall exactly what § 87(2)(b) said or did that indicated to him that he was welcome to enter the apartment. § 87(2)(b) allowed the officers to check his bathroom, and PO Gonzalez observed the leak coming from § 87(2)(b). Approximately five to ten minutes after PO Gonzalez and PO Rivera-Gonzalez arrived on the § 87(2)(b) floor, while they were standing in the front doorway and preparing to leave the building, § 87(2)(b) arrived at § 87(2)(b). PO Gonzalez noted that he may have been holding the door open with his foot because he and PO Rivera-Gonzalez were conversing with § 87(2)(b) and § 87(2)(b). PO Gonzalez did not recall PO Rivera-Gonzalez holding the door open with his foot at any point. PO Gonzalez stated that § 87(2)(b) pushed between him and PO Rivera-Gonzalez and entered § 87(2)(b) which point he and PO Rivera-Gonzalez entered the apartment immediately behind her to get her to calm down.

PO Emil Alvarez of Housing Bureau Bronx/Queens Response Team stated that PO Rivera-Gonzalez knocked on the door to § 87(2)(b) and spoke to § 87(2)(b) and § 87(2)(b) inside § 87(2)(b) while he stood in the hallway. PO Alvarez did not recall any officer holding the door open with his foot. PO Alvarez did not recall whether any officer asked § 87(2)(b) or § 87(2)(b) if they could enter the apartment, or whether § 87(2)(b) or § 87(2)(b) volunteered their consent for the officers to enter the apartment.

PO Alvarez did not recall hearing any of the occupants of § 87(2)(b) tell the officers that they could not come inside. PO Alvarez then suddenly heard § 87(2)(b) yelling at PO Rivera-Gonzalez, but he did not observe whether § 87(2)(b) was already in the apartment or whether she had entered the apartment from the hallway. PO Alvarez did not recall how long PO Rivera-Gonzalez was inside the apartment before § 87(2)(b) started to scream. When PO Alvarez first noticed § 87(2)(b) she was already in the apartment and was less than one foot away from PO Rivera-Gonzalez. PO Alvarez stated that he may have entered the apartment and stood by the entrance when this commotion started, but he did not recall whether he entered the apartment.

PO Preston Uwoghiren of Housing Bureau Bronx/Queens Response Team stated that he was on the § 87(2)(b) floor with PO Rivera-Gonzalez and PO Gonzalez, who descended down to the § 87(2)(b) floor before him. Upon arriving on the § 87(2)(b) floor, PO Uwoghiren saw § 87(2)(b) being placed in handcuffs. PO Uwoghiren did not observe what happened on the § 87(2)(b) before § 87(2)(b) was handcuffed.

§ 87(2)(g)
It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: Police Officer Joel Rivera-Gonzalez threatened to arrest

§ 87(2)(b) stated that once she entered the apartment, PO Rivera-Gonzalez approached her and told her that he would arrest her the next time she banged on the door to § 87(2)(b) and that he repeatedly told her that he was going to arrest her. § 87(2)(b) stated that PO Rivera-Gonzalez told § 87(2)(b) “Don’t you ever fucking go banging on somebody’s door (see Allegation C),” but she noted that no officer threatened to arrest § 87(2)(b) and that PO Rivera-Gonzalez did not say what he would do if § 87(2)(b) banged on the door to § 87(2)(b). § 87(2)(b) did not hear any officer tell § 87(2)(b) that she would be arrested if she knocked on any doors on the § 87(2)(b) floor, but he noted that an unidentified officer told her that she was going to be handcuffed and arrested. § 87(2)(b) did not know what PO Rivera-Gonzalez said to § 87(2)(b) because he neither speaks nor understands English.

PO Rivera-Gonzalez did not recall telling § 87(2)(b) that he would arrest her if she ever banged on the door to § 87(2)(b) again, or threatening to arrest her at any point. He stated that § 87(2)(b) was not under arrest at any point, and that she could have been arrested for harassment had the tenant in § 87(2)(b) filed a complaint against her, but he did not recall whether any such complaint was filed. PO Gonzalez’s and PO Alvarez’s statements were consistent with PO Rivera-Gonzalez’s. PO Gonzalez noted that § 87(2)(b) could not have been arrested for what had occurred on the § 87(2)(b) floor, and PO Alvarez did not learn of anything that § 87(2)(b) did on the § 87(2)(b) floor that would have prompted her arrest. PO Uwoghiren did not observe what happened on the § 87(2)(b) floor before § 87(2)(b) was handcuffed.

§ 87(2)(g)
It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C – Discourtesy: Police Officer Joel Rivera-Gonzalez spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) explained to PO Rivera-Gonzalez that she went to § 87(2)(b) to see whether the leak was coming from this apartment and asked PO Rivera-Gonzalez why he was so angry, and PO Rivera-Gonzalez allegedly told her to “shut the fuck up.” § 87(2)(b) asked PO Rivera-Gonzalez why he thought he could speak to her in such a manner in her home, and PO Rivera-Gonzalez allegedly replied, “This is my motherfucking house. Every time we’re here, it’s our fucking house.” § 87(2)(b) alleged that PO Rivera-Gonzalez repeatedly stated that § 87(2)(b) was his “fucking house.”

From the bathroom, § 87(2)(b) heard PO Rivera-Gonzalez allegedly say, “Who the fuck are you?” to § 87(2)(b) and, “This is my fucking house,” at which point she exited the bathroom and remained by the bathroom door to watch what was happening. (Before the undersigned began asking questions, § 87(2)(b) had offered her own independent recollection of PO Rivera-Gonzalez saying, “This is my fucking house.”) After § 87(2)(b) was handcuffed and began to cry, PO Rivera-Gonzalez allegedly told her to “shut the fuck up.”

§ 87(2)(b) stated that from his bedroom, he heard PO Rivera-Gonzalez say, “This is my fucking house. I make the rules now. When I walk in here, this becomes my house.” (Before the undersigned began asking questions, § 87(2)(b) had offered his own independent recollection of PO Rivera-Gonzalez saying, “This is my house.” When the undersigned asked whether any officer used profanities, he stated that PO Rivera-Gonzalez said, “This is my fucking house.”)

§ 87(2)(b) did not hear anything beforehand and noted that PO Rivera-Gonzalez may have used additional profanities at other points in the encounter, but he did not recall with certainty.

§ 87(2)(b) did not know what PO Rivera-Gonzalez said to § 87(2)(b) because he neither speaks nor understands English. He did not hear any officer use the word “fuck” during this incident, but he did not know what this word meant. He did not hear any officer say that the residence was his own, but he did hear § 87(2)(b) tell PO Rivera-Gonzalez that it was her residence.

PO Rivera-Gonzalez did not recall telling § 87(2)(b) to “shut the fuck up” or saying, “This is my motherfucking house. Every time we’re here, it’s our fucking house,” and he did not recall using profanities at any point. PO Gonzalez’s and PO Alvarez’s statements were consistent with PO Rivera-Gonzalez’s. PO Uwoghiren did not observe what happened on the § 87(2)(b) floor before § 87(2)(b) was handcuffed.

Patrol Guide Procedure 203-09 (Board Review 05) states that officers must be courteous and respectful while on duty.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.

Allegation D – Force: Police Officer Joel Rivera-Gonzalez used physical force against

§ 87(2)(b)

§ 87(2)(b) stated that after PO Rivera-Gonzalez handcuffed her, he grabbed her left arm, pushed her into the living room, and then shoved her in her left arm with one hand, causing her to fall onto her left side on a couch approximately ten feet away from where she was standing.

§ 87(2)(b) stated that PO Rivera-Gonzalez did not give her any commands between handcuffing her and pushing her onto the couch and that she did not offer any resistance.

§ 87(2)(b) stated that PO Rivera-Gonzalez pushed § 87(2)(b) in her back onto the couch and that § 87(2)(b) landed face-down on the couch.

§ 87(2)(b) stated that he saw § 87(2)(b) being handcuffed, and he believed officers told her to sit on the couch and she complied. He stated that he did not believe any officer pushed or threw her onto the couch. § 87(2)(b) noted that he saw § 87(2)(b) being handcuffed, but he did not see when she went down onto the couch because he did not have a full view on the living room from where he was standing in the hallway.

§ 87(2)(b) stated that while he was in the bathroom, he heard § 87(2)(b) yelling for him to come defend her. He heard other people speaking in the living room, but he could not understand what was being said. When he arrived in the living room, he saw § 87(2)(b) handcuffed and already seated on a piece of furniture.

PO Rivera-Gonzalez stated that he handcuffed § 87(2)(b) and asked her to sit on a couch approximately ten feet away from where she was standing, and she complied. He stated that he did not physically move § 87(2)(b) towards the couch, push or shove her, or use any physical force against her. PO Rivera-Gonzalez did not recall § 87(2)(b) offering any physical resistance. PO Gonzalez's, PO Alvarez's, and PO Uwoghiren's statements were generally consistent with PO Rivera-Gonzalez's. PO Gonzalez noted that § 87(2)(b) stiffened her body while PO Rivera-Gonzalez attempted to handcuff her, but he noted that she did not offer any significant physical resistance beyond this.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E – Abuse of Authority: Police Officer Adam Gonzalez refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) stated that while she was handcuffed and seated on her couch, she asked PO Gonzalez for his name and shield number, and PO Gonzalez allegedly replied that he did not have

to give this information to her. § 87(2)(b) stated that she asked PO Gonzalez for his name and shield number two more times, but he allegedly did not respond.

§ 87(2)(b) stated that she did not hear § 87(2)(b) request any officer's name or shield number. § 87(2)(b) stated that § 87(2)(b) asked PO Gonzalez for his shield number and that PO Gonzalez provided some identifying information to § 87(2)(b) but he did not know what this information was. § 87(2)(b) neither speaks nor understands English, and he did not know whether § 87(2)(b) asked any officer for his name or shield number.

PO Gonzalez stated that § 87(2)(b) asked him for his name and shield number while she was seated on the couch and he replied, "Officer Gonzalez, 2677," and gestured towards his shield. He stated that he did not tell her that he did not have to provide her with his name and shield number at any point, and that he did not refuse to provide his name and shield number to her. PO Rivera-Gonzalez did not recall whether § 87(2)(b) requested any officer's name or shield number or any officer saying in response that he did not have to provide this information, and he had no memory of any officer refusing to provide his name or shield number to § 87(2)(b). PO Alvarez's statement was consistent with PO Rivera-Gonzalez's. PO Uwoghien stated that § 87(2)(b) asked an officer for his name and shield number, but he did not recall which officer she directed this request to, and he stated that no officer refused to provide his name or shield number to her or told her that he did not have to provide his name or shield number to her. PO Rivera-Gonzalez issued § 87(2)(b) a summons containing his name and tax identification number (Board Review 06).

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F – Abuse of Authority: Police Officer Joel Rivera-Gonzalez issued a summons to § 87(2)(b)

§ 87(2)(b) stated that when she arrived on the § 87(2)(b) floor, she noticed seven to eight officers blocking and looking towards the door to § 87(2)(b). § 87(2)(b) said "excuse me" and seven of the eight officers moved out of her way, but PO Rivera-Gonzalez remained at the door to § 87(2)(b) blocking her entrance into the apartment and holding the door open with his foot (see Allegation A). § 87(2)(b) said "excuse me" again, but PO Rivera-Gonzalez did not respond. § 87(2)(b) asked PO Rivera-Gonzalez if he was entering or exiting the apartment. PO Rivera-Gonzalez looked at § 87(2)(b) and did not move. § 87(2)(b) told PO Rivera-Gonzalez that § 87(2)(b) was her daughter and lived in the apartment, and then PO Rivera-Gonzalez moved out of her way. § 87(2)(b) entered the apartment and asked her parents why the police department was present. § 87(2)(b) asked PO Rivera-Gonzalez why the officers were there, and PO Rivera-Gonzalez said that § 87(2)(b) was banging on the door to § 87(2)(b). § 87(2)(b) told PO Rivera-Gonzalez that § 87(2)(b) was not banging on the door, and PO Rivera-Gonzalez got upset, approached § 87(2)(b) in the apartment, put his finger in her face, and said that he would arrest her the next time she banged on the door to § 87(2)(b) (see Allegation B). § 87(2)(b) had no conversation with PO Rivera-Gonzalez prior to this point and stated that he was "agitated" and had "an attitude." § 87(2)(b) told PO Rivera-Gonzalez that she only knocked on the door and did not bang on the door, and explained that they wanted to know whether the water was

coming from upstairs and whether the tenant in § 87(2)(b) was okay. § 87(2)(b) described her demeanor at the time as shocked but calm and she stated that she did not raise her voice or use profanities. PO Rivera-Gonzalez yelled at § 87(2)(b) and she asked him why he was so angry. § 87(2)(b) noted that PO Rivera-Gonzalez did not ever speak in a normal tone of voice in her presence. PO Rivera-Gonzalez allegedly told § 87(2)(b) to “shut the fuck up (see Allegation C),” and she asked him why he thought he could speak to her in such a manner in her home. PO Rivera-Gonzalez allegedly replied, “This is my motherfucking house. Every time we’re here, it’s our fucking house (see Allegation C).” For approximately the next five minutes, PO Rivera-Gonzalez allegedly continued to be disrespectful and said it was “[his] fucking house” and that he was going to arrest § 87(2)(b) (see Allegations B and C). § 87(2)(b) asked § 87(2)(b) and § 87(2)(b) why the officers were present because there was “no incident,” no one requested police assistance, and there was no reason for the officers to be inside the apartment. PO Rivera-Gonzalez turned away from § 87(2)(b) pointed his index finger towards § 87(2)(b)’s face, and said, “You’re still not shutting up? I told you to shut up.” § 87(2)(b) noted that she did not move from where she stood and that PO Rivera-Gonzalez approached her. § 87(2)(b) told PO Rivera-Gonzalez to take his hand away from her face and said he was being disrespectful. § 87(2)(b) said, “What the fuck is going on? Why the fuck are you talking to me like this?” Although she was cursing and starting to cry, she stated that she avoided getting “all upset” and did not raise her voice. § 87(2)(b) told PO Rivera-Gonzalez that she was speaking to her mother and brother, not him, and that he was having a conversation with her father, and she insisted that she had a right to speak in her own home. PO Rivera-Gonzalez decided that § 87(2)(b) was being “disobedient” and said he was going to handcuff her. PO Rivera-Gonzalez did not issue any commands to § 87(2)(b) before this. PO Rivera-Gonzalez handcuffed § 87(2)(b) and placed her on the couch. § 87(2)(b) sat up on the couch and began to cry and asked why she was handcuffed; she did not raise her voice or use profanities at this point. § 87(2)(b) did not notice any of her neighbors exit their apartments and watch what was happening. PO Rivera-Gonzalez then wrote § 87(2)(b) a summons for disorderly conduct.

§ 87(2)(g) § 87(2)(b)
§ 87(2)(b) stated that PO Rivera-Gonzalez was “in § 87(2)(b)’s face” when she asked him what he was doing inside the apartment. § 87(2)(b) described § 87(2)(b)’s demeanor as calm and that she was not shouting at the beginning of the encounter, but noted that § 87(2)(b) started shouting, cursing, and crying “hysterically” once PO Rivera-Gonzalez handcuffed her. § 87(2)(b) stated that § 87(2)(b) did not behave in a disruptive manner before she was handcuffed. § 87(2)(b) was not sure whether any of her neighbors watched the incident.

§ 87(2)(g) He stated that
§ 87(2)(b) was arguing with the officers but was not yelling and asked the officers what they were doing inside the apartment. He stated that § 87(2)(b) and PO Rivera-Gonzalez stood four to five feet away from each other as they argued back and forth, and that § 87(2)(b) was standing still and did not raise her voice, use profanities, cause any disturbance, or behave in a threatening or aggressive manner. None of his neighbors watched what was happening inside § 87(2)(b). He also stated that § 87(2)(b) started crying after she was handcuffed.

§ 87(2)(b) does not speak or understand English, but he stated that § 87(2)(b) spoke to the officers in a somewhat elevated tone but was not yelling.

PO Rivera-Gonzalez issued C-Summons § 87(2)(b) (Board Review 06) to § 87(2)(b) for disorderly conduct/”violent and threatening behavior” and cited Article 240, Section 20, Subsection 1 of the New York State Penal Code. In the Factual Allegations section, PO Rivera-Gonzalez wrote, “At T/P/O, the undersigned observed the defendant [at the] above location with intent to cause disruption act in a violent and threatening manner.”

PO Rivera-Gonzalez stated that as the officers were speaking to § 87(2)(b) and § 87(2)(b) arrived in the hallway and was yelling, cursing the officers out, and wagging her finger in the officers’ faces as she stood in the officers’ personal space. PO Rivera-Gonzalez did not recall how far she stood from the officers. § 87(2)(b) was irate, disrespectful, and “acting totally out of control.” PO Rivera-Gonzalez recalled the statements she made as, “Fuck this,” “Fuck that,” and, “In and out.” PO Rivera-Gonzalez did not know what § 87(2)(b) was trying to say or why she was so upset. PO Rivera-Gonzalez told § 87(2)(b) many times to relax because he was speaking to her parents, but she refused to comply. PO Rivera-Gonzalez did not recall there being any other civilians in the hallway while he was in the hallway. PO Rivera-Gonzalez did not recall seeing any of § 87(2)(b)’s neighbors exit their apartments or gather to watch the incident at any point. Once inside the apartment, § 87(2)(b) paced back and forth between the kitchen and the living room, walked between officers, and invaded their personal space. PO Rivera-Gonzalez did not recall what § 87(2)(b) was saying. § 87(2)(b) was not under arrest at any point, and PO Rivera-Gonzalez did not intend to take any other police action other than to tell her to not go upstairs to § 87(2)(b) (“I just wanted to say that and get out of there”). PO Rivera-Gonzalez decided that he needed to place § 87(2)(b) in handcuffs due to her behavior in order to gain control of the situation. PO Rivera-Gonzalez told § 87(2)(b) to relax and stand down. § 87(2)(b) continued to invade the officers’ personal space, but PO Rivera-Gonzalez was unable to estimate how close she came to the officers. PO Rivera-Gonzalez did not recall § 87(2)(b) ever touching him, but she got close enough to him to make him fear for his safety. He told her that she was going to be handcuffed, and she remained “totally out of control.” § 87(2)(b) calmed down slightly after PO Rivera-Gonzalez removed his handcuffs from his belt. After being in the apartment for a total of approximately five to ten minutes, PO Rivera-Gonzalez handcuffed § 87(2)(b). § 87(2)(b) continued to be irate and agitated after she was handcuffed, but less so than before she was handcuffed. PO Rivera-Gonzalez made the decision to summons § 87(2)(b) for disorderly conduct.

PO Gonzalez stated that when § 87(2)(b) arrived on the § 87(2)(b) floor, she pushed her way between PO Gonzalez and PO Rivera-Gonzalez by taking her hands, placing them between the officers, and pushing them apart from each other as they stood at the door to § 87(2)(b) § 87(2)(b). § 87(2)(b) did not say anything before pushing PO Gonzalez and PO Rivera-Gonzalez, and PO Gonzalez did not notice her before this push. § 87(2)(b) did not make any physical contact with any officer at any other point. § 87(2)(b) yelled, “In or out.” § 87(2)(b) entered the apartment and walked back and forth down a hallway between the living room and the kitchen. PO Gonzalez and PO Rivera-Gonzalez entered the apartment immediately behind § 87(2)(b) to get her to calm down and to tell her that she could not put her hands on them and should not be speaking to them in such a manner. § 87(2)(b) did not seem interested in hearing anything the officers had to say and became very irate. She got less than a foot from the

PO Gonzalez and PO Rivera-Gonzalez, waved her hands and wagged her finger in their faces, and told the officers that it was her house and that she would talk to the officers however she wanted to. PO Gonzalez perceived § 87(2)(b) pushing the officers, waving her hands in their faces, and walking between the kitchen and the living room as threatening, but he did not recall § 87(2)(b) making any explicit verbal threats. § 87(2)(b) was cursing, but PO Gonzalez did not recall exactly what she said. The officers told § 87(2)(b) to come into the living room and stay away from the kitchen, but she said she can do what she wants. PO Gonzalez described PO Rivera-Gonzalez's and the other officers' demeanors as calm. None of § 87(2)(b)'s neighbors exited their apartments, and PO Gonzalez did not recall any civilians gathering in the hallway to watch what was happening. PO Gonzalez believed PO Rivera-Gonzalez warned § 87(2)(b) that she was going to be handcuffed and summonsed for disorderly conduct if she did not calm down, and § 87(2)(b) did not directly respond but remained "unhappy about the situation."

PO Alvarez stated that he heard § 87(2)(b) screaming and yelling at PO Rivera-Gonzalez, but he did not observe whether § 87(2)(b) was already in the apartment or whether she entered the apartment from the hallway. When PO Alvarez first saw § 87(2)(b) she was already in the apartment and was less than one foot away from PO Rivera-Gonzalez. PO Alvarez did not recall what § 87(2)(b) was doing with her body or what she was saying. When asked whether he understood why § 87(2)(b) was so upset based on the statements that she was making, PO Alvarez stated that he did not speak to § 87(2)(b) directly or indirectly. PO Alvarez did not recall § 87(2)(b) drawing the attention of any of her neighbors or causing crowd of civilians to form in the hallway. PO Alvarez described PO Rivera-Gonzalez's demeanor as "fine." § 87(2)(b) continued to scream and yell at PO Rivera-Gonzalez, but PO Alvarez did not know what she was saying because he was not close enough to hear them. When asked whether there was any reason to handcuff § 87(2)(b) based on the way she was acting, PO Alvarez stated that she was screaming and yelling towards PO Rivera-Gonzalez and would not let him talk. § 87(2)(b) was still emotional after she was handcuffed, but she eventually relaxed and calmed down. PO Alvarez did not see § 87(2)(b) behave in a violent manner because PO Rivera-Gonzalez was obstructing his view of her. PO Alvarez did not recall hearing § 87(2)(b) make any threatening remarks.

Upon arriving on the § 87(2)(b) floor, PO Uwoghiren saw § 87(2)(b) being placed in handcuffs by PO Rivera-Gonzalez in the living room of § 87(2)(b). PO Uwoghiren could not hear what was happening on the § 87(2)(b) floor from the § 87(2)(b) floor, and he did not recall whether he could hear § 87(2)(b) or anyone else in § 87(2)(b) from the staircase. § 87(2)(b) was crying and cursing ("Fuck you, you can't do that"), and someone in the apartment was telling her to calm down. PO Uwoghiren did not recall whether anyone gathered in the hallway or stopped and watched what was happening in § 87(2)(b). After being handcuffed and seated on the couch, § 87(2)(b) was upset, emotional, and crying. PO Uwoghiren did not recall why § 87(2)(b) was so upset. An officer whom PO Uwoghiren could not recall explained to § 87(2)(b) why she was issued a summons, but PO Uwoghiren did not recall what the explanation was. PO Uwoghiren did not observe § 87(2)(b) behaving violently in his presence. PO Uwoghiren did not recall whether he heard § 87(2)(b) make any threatening remarks or whether she was behaving in a threatening manner in his presence. No officer explained to PO Uwoghiren what happened before he arrived at § 87(2)(b) when § 87(2)(b) was allegedly behaving in a violent and threatening manner.

Article 240, Section 20, Subsection 1 of the New York State Penal Code (Board Review 05) states, “A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he engages in a violent, tumultuous, or threatening behavior.”

People v. Munafo (50 N.Y.2d 326, 1980 – Board Review 05) states, “In deciding whether an act carries public ramifications, courts are constrained to assess the nature and number of those attracted, taking into account the surrounding circumstances, including, of course, the time and place of the episode under scrutiny.”

People v. Baker (20 N.Y.3d 354, 2013 – Board Review 05) states, “As is clear from precedent, critical to a charge of disorderly conduct is a finding that defendant’s disruptive statements and behavior were of a public rather than an individual dimension,” and holds that “isolated statements using coarse language to criticize the actions of a police officer, unaccompanied by provocative acts or other aggressive circumstances, will rarely afford a sufficient basis to infer the presence of the ‘public harm’ mens rea necessary to support a disorderly conduct charge.” In this case, the defendant was arrested for disorderly conduct after shouting profanities at a police officer seated alone in a police vehicle. The court found that, “The fact that defendant’s abusive statements were directed exclusively at a police officer – a party trained to defuse situations involving angry or emotionally distraught persons – further undermines any inference that there was a threat of public harm, particularly since the police officer was in a position of safety and could have closed his windows and ignored defendant.”

In People v. Moreno (14 Misc. 3d 138(A), 2015 – Board Review 05), an individual at the St. George Staten Island Ferry Terminal was arrested for disorderly conduct after he stated to a police officer, “Fuck you, the cop that got shot in the face deserved it, you guys are going to get yours.” The court dismissed this disorderly conduct charge because, “other than the allegation that the incident occurred in the St. George Staten Island Ferry Terminal, nothing in the factual part of the alleged that the defendant’s acts had a public dimension,” and went on to explain, “There are no factual allegations as to whether there were bystanders or spectators who noticed the defendant yelling obscenities and crude comments at a police officer, and/or whether there was a risk of any public inconvenience, annoyance or alarm as a result of the defendant’s conduct.”

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [Redacted]

§ 87(2)(g) [Redacted]

§ 87(2)(g) [Redacted]

§ 87(2)(g) [Redacted]

[Redacted] It is therefore recommended that **Allegation F** be closed as **substantiated**.

Squad: 9

Investigator: _____

	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date